

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Moss	Team: Squad #13	CCRB Case #: 201909139	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Sunday, 09/08/2019 11:55 AM	Location of Incident: State Street and Henry Street	18 Mo. SOL 10/23/2021	Precinct: 84		
Date/Time CV Reported Fri, 10/18/2019 4:34 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/18/2019 4:34 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jesse Trap	10734	960033	084 PCT
2. POM Paulton Chan	15546	955807	084 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Egemen Aydin	10613	961631	084 PCT
2. LT Angel Vasquez	00000	931365	084 PCT
3. POF Samantha Hill	25521	965190	084 PCT
4. POM Andrew Genao	26736	965130	084 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jesse Trap	Abuse: Police Officer Jesse Trap stopped § 87(2)(b)	
B . POM Paulton Chan	Abuse: Police Officer Paulton Chan stopped § 87(2)(b)	
C . POM Jesse Trap	Force: Police Officer Jesse Trap used physical force against § 87(2)(b)	
D . POM Jesse Trap	Discourtesy: Police Officer Jesse Trap spoke discourteously to § 87(2)(b)	
E . POM Jesse Trap	Off. Language: Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)	
F . POM Jesse Trap	Off. Language: Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)	
G . POM Jesse Trap	Off. Language: Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)	
H . POM Jesse Trap	Off. Language: Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	
I . POM Jesse Trap	Off. Language: Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
J . POM Jesse Trap	Off. Language: Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)	

Case Summary

On October 18, 2019, § 87(2)(b) filed this complaint on the CCRB's website on behalf of himself, his wife, § 87(2)(b) and their nine-year-old daughter, § 87(2)(b).

On September 8, 2019, at approximately 12:00 p.m., Police Officers Jesse Trap and Paulton Chan, both from the 84th Precinct, responded to 911 calls regarding a woman screaming, spitting, and hitting passersby. At the intersection of State Street and Henry Street in Brooklyn, the officers stopped § 87(2)(b). (**Allegations A-B – Abuse of Authority: Stop;** § 87(2)(g) § 87(2)(b) who was with § 87(2)(b) and § 87(2)(b) did not want to speak with the officers and attempted to walk away. The officers handcuffed § 87(2)(b) and called EMS to come psychologically evaluate her. PO Trap used physical force against § 87(2)(b). (**Allegation C – Force: Physical Force;** § 87(2)(g) PO Trap spoke discourteously to § 87(2)(b) and § 87(2)(b). (**Allegation D – Discourtesy: Word;** § 87(2)(g) and he spoke offensively toward § 87(2)(b) and § 87(2)(b). (**Allegations E-G – Offensive Language: Other;** § 87(2)(g) § 87(2)(b) (**Allegations H-J – Offensive Language: Gender and Other;** § 87(2)(g) § 87(2)(b) was not arrested or summonsed.

The investigation obtained body-worn camera (BWC) footage of the incident from PO Trap and PO Chan, as well as Police Officers Andrew Genao, Samantha Hill, and Egemen Aydin, all from the 84th Precinct. The BWC footage is in IAs 68-72 (**BRs 1-5**), and the summaries are in IAs 75, 78, and 86-88 (**BRs 6-10**).

Allegation A – Abuse of Authority: Police Officer Jesse Trap stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Paulton Chan stopped § 87(2)(b)

The following facts are undisputed: On September 8, 2019, at approximately 12:00 p.m., § 87(2)(b) and § 87(2)(b) went for a walk in their neighborhood. On the walk, § 87(2)(b) got into a dispute with a stranger. Bystanders stopped to watch the interaction. After a few minutes, § 87(2)(b) and her family continued walking. At the southwest corner of State Street and Henry Street, PO Trap and PO Chan pulled up next to § 87(2)(b) exited their vehicle, and stopped her on the sidewalk.

§ 87(2)(b) testified that the incident began when a stranger bumped into § 87(2)(b) and tried to steal her pocketbook (**BR 11**). § 87(2)(b) resisted, and the man slapped her chest. § 87(2)(b) separated them, and bystanders stopped to see what was happening. § 87(2)(b) and § 87(2)(b) walked away and had no further interactions with the stranger.

§ 87(2)(b) citing her anxiety disorder, chose not to participate in this investigation (**BR 12**).

Both officers testified that they picked up a radio job regarding a crime in progress at State Street and Clinton Street. Though PO Trap did not remember the specifics of the job, he believed the 911 operator provided a physical description of the suspect (**BR 13**). PO Trap did not recall what the description was, but he believed the operator may have mentioned something about a football jersey. PO Trap stopped § 87(2)(b) at the corner of State Street and Henry Street because she matched the description provided over the radio and was within a one-block radius of the incident location. PO Trap did not recall how exactly she matched the description aside from recalling that she was wearing a red and blue football jersey.

PO Chan testified that the radio-run was for a woman who was yelling, screaming, hitting, and spitting at strangers (**BR 14**). The operator said the suspect wore a #21 football jersey and was with a white male and a female child. PO Chan did not recall if the suspect was described in additional detail. He stopped § 87(2)(b) to ask her questions and investigate further because she was wearing a #21 football jersey and was with a man and a child near the reported incident location.

The 911 Event Chronology confirmed that several witnesses called 911 to report an individual “spitting,” “hitting,” “yelling,” and “attacking” people at the corner of Clinton Street and State Street (BR 15). The callers described the suspect as a female wearing a #21 football jersey with a male and a child. The suspect walked down State Street headed toward Henry Street.

Both officers’ BWC videos capture them drive up to § 87(2)(b) exit their vehicle, and tell her to stop (BRs 1-2). § 87(2)(b) wears a #21 football jersey and stands on the sidewalk with § 87(2)(b) and § 87(2)(b).

Under the New York Court of Appeals’ decision in People v. De Bour (40 N.Y.2d 210), officers may forcibly stop an individual when they have a reasonable suspicion that the individual has committed, is committing, or is about to commit a crime (BR 16). It is against the law in New York to recklessly or intentionally cause injury to another person (BR 17).

§ 87(2)(g)
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Allegation C – Police Officer Jesse Trap used physical force against § 87(2)(b)

It is undisputed that when the officers attempted to stop § 87(2)(b) she did not want to speak with them. They blocked her path and rear handcuffed her.

In PO Trap’s BWC footage at the 01:58 minute mark of the media player timestamp (visible at the bottom of the screen), § 87(2)(b) walks next to the side of a building in an apparent attempt to get past the officers (BR 1). PO Trap grabs § 87(2)(b) front side with both hands and guides her front-first against the building wall. § 87(2)(b) wiggles her body and tries to pull away from the officers. They handcuff her. At 03:05, § 87(2)(b) falls to the sidewalk on her front-right side, though it is unclear what causes her to fall. In the seconds leading up to the fall, § 87(2)(b) screams, “She has autism, can you let go of me please?” in reference to § 87(2)(b) who is yelling, crying, and laying on the sidewalk. Additional officers had not yet arrived on scene, and their BWC videos accordingly do not depict the force used (BRs 3-5).

PO Chan’s BWC footage provides a clearer depiction of how and why § 87(2)(b) fell. At the 03:00 minute mark of the media player timestamp (visible at the bottom of the screen), PO Chan walks to the corner to call an ambulance (BR 2). At 03:05, he turns back around to face PO Trap and § 87(2)(b). PO Trap stands with his right arm interlocked with § 87(2)(b) left arm, which is handcuffed behind her back. PO Trap’s right leg is positioned between § 87(2)(b) legs, as depicted in the screenshot saved to IA 175 (BR 18). Immediately when PO Chan turns back to face them, PO Trap abruptly and forcefully twists his right arm and upper body away from § 87(2)(b) pulling her over his outstretched leg (see BWC clip saved to IA 182, BR 19).

§ 87(2)(b) testimony was generally consistent with the BWC footage. He testified that PO Trap leg swiped § 87(2)(b) feet out from underneath her, causing her to fall (BR 11).

PO Chan’s testimony was also generally consistent with the BWC footage, though he did not know how § 87(2)(b) ended up on the ground or if he saw PO Trap take her down (BR 14).

PO Trap's statement was generally consistent with the BWC footage, though he denied tripping § 87(2)(b) or intentionally taking her to the ground in any other way (BR 13). He stated that § 87(2)(b) flailed and twirled her body to get away from him, which inadvertently caused her to fall to the ground because his arm was interlinked with hers. Upon reviewing his and PO Chan's BWC videos, he reiterated that he did not intentionally bring § 87(2)(b) to the ground.

Both officers had previously interacted with § 87(2)(b). PO Trap testified that he had responded to two or three radio runs regarding § 87(2)(b) (BR 13). During those incidents, the situation deescalated when the officers arrived. PO Trap believed § 87(2)(b) had been an Emotionally Disturbed Person (EDP) during those encounters, but she had not needed to be removed to the hospital because she was able to talk with the officers and was not aggressive. PO Chan responded to one job involving § 87(2)(b) where she allegedly assaulted the driver of a vehicle (BR 14). § 87(2)(b) was not arrested, but PO Chan believed EMS arrived to medically evaluate her.

§ 87(2)(b) hospital records show that she was diagnosed with a minor muscle strain in her left knee, for which she took ibuprofen (BR 20). According to the EMTs on scene—as depicted in PO Chan's BWC footage at the 22:40 minute mark of the media player timestamp (visible at the bottom of the § 87(2)(b) was taken to the hospital for her injured knee rather than to be psychologically evaluated as an EDP (BR 2).

Officers may not use force against handcuffed individuals except to “prevent injury, escape or to overcome active physical resistance or assault” (BR 21). If officers must use force against a handcuffed individual, that force must be reasonable under the totality of the circumstances, including the following factors:

- a. The nature and severity of the crime/circumstances;
- b. Actions taken by the subject;
- c. Duration of the action;
- d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders;
- e. Whether the subject is actively resisting custody;
- f. Whether the subject is attempting to evade arrest by flight;
- g. Number of subjects in comparison to the number of MOS;
- h. Size, age, and condition of the subject in comparison to the MOS;
- i. Subject's violent history, if known;
- j. Presence of hostile crowd or agitators;
- k. Subject apparently under the influence of a stimulant/narcotic which; would affect pain tolerance or increase the likelihood of violence.”

§ 87(2)(g)

Additionally, the EMTs determined that § 87(2)(b) did not need to be psychologically evaluated. She was not attempting to evade arrest, as she was not under arrest. The officers outnumbered § 87(2)(b) two-to-one. Based on the BWC footage, it appears that PO Trap—a 6'2" tall, 215 pounds, 26-year-old male—had a significant size advantage over § 87(2)(b). The officers were aware that § 87(2)(b) had previously been a subject of similar 911 calls. There were no agitators or hostile crowds nearby. Neither officer mentioned believing she was under the influence of a stimulant or narcotic.

§ 87(2)(g)

§ 87(2)(g)

She hit the ground with a thud and sustained a minor injury to her left knee. § 87(2)(g)

Allegation D - Police Officer Jesse Trap spoke discourteously to § 87(2)(b)

Allegation E - Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)

Allegation F - Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)

Allegation G - Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)

In PO Trap's BWC footage at the 01:40 minute mark of the media player timestamp (visible at the bottom of the screen), he speaks with § 87(2)(b) and § 87(2)(b) on the sidewalk (BR 1). § 87(2)(b) stands farther down the sidewalk and shakes a tree. PO Trap says, "What the fuck is going on here?" and § 87(2)(b) responds, "She has autism, ok? Don't laugh at her." At 03:30, § 87(2)(b) tells PO Trap that she is not crazy. A few moments later, at 03:48, PO Trap says loudly in the direction of § 87(2)(b) and § 87(2)(b) "She's going to go to the hospital because this whole place—everybody here is crazy." § 87(2)(b) repeats, "No, I'm not crazy." Later, at 20:30, PO Trap says, "The whole family is EDP. The whole family."

§ 87(2)(b) did not mention those statements captured in the BWC footage (BR 11).

During his CCRB interview, PO Trap said he understood the term "EDP" to refer to someone with a mental disability or someone who has been classified that way over the radio (BR 13). PO Trap clarified that someone with a mental disability is not necessarily an EDP if they are on their medication, non-violent, and acting in a "regular" manner. PO Trap did not recall if he called anyone "crazy." He denied using any profanities, including "fuck." Upon reviewing his BWC footage, PO Trap did not hear himself say, "What the fuck is going on here?" at 01:40, but he did not deny saying that. As he did not hear the comment in the video and did not recall saying it, he was unable to provide an explanation for why he might have said it. After reviewing his BWC footage, PO Trap believed he said everybody there was "crazy" at 03:30 because the incident had gotten out of control. When asked whom he was referring to when he said that "everybody" was crazy, he replied, "I'm not referring to anyone exactly. I'm saying this incident is getting crazy. This is crazy." When asked again why he used the word "everybody" specifically, he said he used that word to refer to the group that he was interacting with (i.e., § 87(2)(b) and her family).

According to DCT Case No. 2015-15012, though officers are to behave professionally and respectfully towards members of the public and to avoid the use of discourteous language, their use of profanities during stressful encounters does not necessarily constitute misconduct (BR 25). NYPD Patrol Guide, Procedure 203-10 prohibits officers from making discourteous or disrespectful remarks regarding an individual's disability (BR 26).

§ 87(2)(g) they responded to reports of an assault and, when they attempted to investigate, § 87(2)(b) screamed and resisted being placed in their

custody, § 87(2)(b) meanwhile, ran on the sidewalk, yelled, and shook a tree. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation H - Police Officer Jesse Trap made offensive remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation I - Police Officer Jesse Trap offensive made remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)

Allegation J - Police Officer Jesse Trap offensive made remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)

§ 87(2)(b) alleged that at various points throughout the incident, PO Trap said the following: “Shut up you, psychotic bitch”; § 87(2)(b) is a] psychotic and retarded bitch”; and, “This woman is so retarded, that little girl must be retarded, too” (BR 11).

PO Trap’s BWC was activated throughout the entire incident and did not capture any of the statements alleged by § 87(2)(b) nor did any of the other officers’ BWCs (BR 1-5). The officers’ BWCs did not capture anyone use the words “retarded,” “psychotic,” or “bitch,” and none of the officers acknowledged either making or hearing any of those alleged statements in their CCRB interviews. § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 27).
- § 87(2)(b)
- PO Trap has been a Member of Service for five years and has been a subject in 14 other CCRB complaints and 31 allegations, of which two have been substantiated (BR 29). § 87(2)(g)
 - Case #201800251 contained substantiated allegations of pepper spray and physical force. The Board recommended Command Discipline B, and the NYPD imposed

Command Discipline B.

- Case # 202100512 involves four allegations of physical force and is currently under investigation.
- PO Chan has been a Member of Service for seven years and has been a subject in two other CCRB complaints and two allegations, neither of which was substantiated (**BR 30**). § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) initially chose to mediate this complaint and the case was forwarded to the Mediation Unit on December 2, 2019. He subsequently changed his mind and the case was returned for an investigation on June 26, 2020.
- As of January 22, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR 31**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator: William L. Moss
Signature

Inv. William Moss
Print Title & Name

05/03/2021
Date

Squad Leader: Laura Kastner
Signature

IM Laura Kastner
Print Title & Name

05/03/2021
Date